

# HOUSE . . . . . No. 4858

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## The Commonwealth of Massachusetts

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HOUSE OF REPRESENTATIVES, December 31, 2025.

The committee on the Judiciary, to whom was referred the petition (accompanied by bill, House, No. 1645) of Michael S. Day relative to the protection of sealed court records, reports recommending that the accompanying bill (House, No. 4858) ought to pass.

For the committee,

MICHAEL S. DAY.

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## The Commonwealth of Massachusetts

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In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
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An Act to update expungement.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           SECTION 1. Chapter 276 of the General Laws is hereby amended by striking out section  
2   100Q and inserting in place thereof the following section:-

3           100Q. Unless otherwise provided by law, no person shall make records sealed pursuant to  
4   section 100A, section 100B or section 100C available for inspection in any form by any person.  
5   No person shall make records expunged pursuant to section 100F, section 100G, section 100H or  
6   section 100K available for inspection in any form by any person. Nothing herein shall be  
7   construed to prohibit the maintenance of information relating to an offense after records or files  
8   concerning the offense have been sealed or expunged if the information is kept in a manner that  
9   does not enable identification of the petitioner and is used solely for statistical or bona fide  
10   research purposes.

11           SECTION 2. Section 100T of said Chapter 276 of the General Laws, as appearing in the  
12   2024 Official Edition, is hereby amended by striking out, in lines 1 to 2, the words “100A or

- 13 section 100B” and inserting in place thereof the following words:- 100A, section 100B or section
- 14 100C.